IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Civil Appellate Jurisdiction)

(Order XVI Rule 4)

Special Leave Petition

S.L.P. (Civil) No._____/2010.

(with prayer for interim relief)

Between:

Sri Balaji,
aged 38 years,
s/o. Srinivasa,
r/o. Door No.905, 4th Main Road,
4th Cross,
Vidyaranyapuram,
Mysore City,
State of Karnataka.

And:

1. Mysore City Corporation,
Sayyaji Rao Road,
Mysore City
(State of Karnataka),
represented by its Commissioner.

2. The Revenue Officer,
Mysore City Corporation,
Sayyaji Rao Road,
Mysore
(State of Karnataka)

TO,

THE HON'BLE CHIEF JUSTICE OF INDIA AND HIS COMPANION JUDGES OF THE HON'BLE SUPREME COURT OF INDIA.

The humble petition of the petitioner above named most respectfully showeth :-

The petitioner above named most respectfully submits this petition praying for grant of special leave appeal from the final order dated 29.7.2010 of the Hon'ble Hon'ble High Court of Karnataka, Bangalore, in W.P. No.21537/2009 (GM-CPC) on its file whereby the said writ petition filed by the petitioner has been dismissed, without even dealing with the merits thereof but furtherdirecting that the petitioner should quit from and vacate the leased premises measuring 6 Ft. x 10 Ft. on which the petitioner has constructed a petty shop (bunk shop) at his cost and has been carrying on therein business of vending Cool drinks and milk.

The said writ petition had arisen from an interlocutary order, passed in an original suit filed by the petitioner, which is from which the same had arisen still pending adjudication before the learned 5th Additional Civil Judge (Junior Division), Mysore, in O.S. No.89/2002 on his file – the said suit being for one filed for a decree of permanent injunction in respect of the same property.

QUESTIONS OF LAW:

The following important questions of law of general public importance arise for the kind consideration of this Hon'ble Court, in the instant Special Leave Petition.

1. Can a tenant holding over be evicted from a leased premises therefrom, without the due process of law being followed in that regard that too when such a property is a “Public Premises” premises within the meaning of the expressing defined in the Karnataka Public Premises (Eviction of unauthorized occupants) Act, 1974 ?

2. Was it not necessary for the Corporation the City of Mysore – the lessor in the instant case to resort to the due process of law under the Transfer of Property Act, 1882, and the Karnataka Public Premises (Eviction of unauthorized occupants) Act, 1974, for evicting the petitioner form the leased premises and for taking over the khas possession thereof from him, by issuing the required notices under the said enactments and initiating proceedings under the latter enactment ?

3. Can the principles of natural justice be breached and ignored and the statutory authorities and local authorities become the law unto themselves, taking the law into their own hands and ejecting lessees without following the due process of law ?

4. Is not the action of the respondents herein high-handed, arbitrary and violative of the principles of natural justice, as also the requirements of Articles 14 and 21 of the Constitution and the provisions of the enactments mentioned above ?

5. Is the Hon’ble High Court justified in not considering the merits of the writ petition at all even after observing that the petitioner may be justified in urging that the proceedings are vitiated ?

6. Keeping in view, the limited scope of the writ petition from which this petition has arisen, is the High Court justified in

directing the petitioner being ejected and that he should quit form and handover the possession of “the premises”. ?

7. Does not the impugned order pre-empt the original suit filed by the petitioner and render it nugatory and academic in nature?

8. Since absence of arbitrary power is the essence of the Rule of law enshrined in Article 14 of the Constitution of India, can the respondnets attempting at evicting, evacuating and ejecting the petitioner, from the leased-property be tenable in law?

IN THE SUPREME COURT OF INDIA AT NEW DELHI

S.L.P. (Civil) No._____/2010.

Between:

Sri Balaji Petitioner

And:

Mysore City Corporation and another. Respondents

SYNOPSYS

The core issue which is involved in the present Special Leave petition is as to whether the Hon'ble High Court of Karnataka having founded and recorded that the notice issued for the eviction of the petitioner is vitiated is the said court justified in not going into and deciding the writ petition on its merits but, in directing the eviction of the petitioner from the lease-hold-property, that too, at an interlocutary stage when the original suit from which the suit had arisen is still pending adjudication before the trial Court.

It is respectfully stated that the questions of law raised in this petition are fully covered in favours of the petitioner, by the celebrated rulings of this Hon'ble Court, rendered in the cases reported in

The petitioner is a petty businessman engaged in vending cool drinks and milk at the Box shop (Bank shop) that he has put up on the site measuring 6 Ft. x 10 Ft. situate adjacent to a place called Tathaiah Park near Jaganmohan Palace in Mysore City, the Corporation City of Mysore which is the owner of the said property having created a registered lease of the said site in

favour of the petitoner on 3.2.1997 under a registered deed of lease of that date. The lease so created in his favour was not a gratis nor a concession extended to him but was an implicit necessity because the Corporation of the City of Mysore which had allotted to the petitioner a site near Devaraja Market, Mysore City, was not able to put the petitioner in the khas possession of the same.

The petitioner who has put up a small bunk shop on the said leased property, at his cost, has been eking out his livelihood from the little income that he has been generating from the business of vending cool drinks and milk that he has been carrying carried on at the said shop.

Undeniably, the Corporation of the City of Mysore has received and accepted from the petitioner ground rent in respect of the leased site till June 2009, and has even issued rent receipts in that regard, notwithstanding that on 17.1.2002 it had issued to the petitioner, an Eviction Notice, besides attempting at high-handedly evicting from the said site.

In the circumstances stated above, impelled and compelled by the high-handed acts of the respondents, herein the petitioner has instituted an original suit in O.S. No.89/2002 in the court of the learned 5th Additional Civil Judge (Junior Division), Mysore, seeking a decree of permanent injunction against the respondents herein that he shall not be evicted from the leased property mentioned above except by following the due process of law. The trial court having rejected the petitioner's application for temporary injunction, by its order dated 24.7.2002 even the 4th Additional Civil Judge, Senior Division, Mysore, dismissed the petitioner's Misc., Appeal No.72/2002 on his file which had arisen from the order of the Trial Court. It was the said dismissal ordered on 8.6.2009 that the petitioner had

questioned in W.P. No.21537/2009 (GM-CPC) under Articles 226 and 227 of the Constitution, from which writ petition this Special Leave Petition has arisen.

Since the petitioner is aggrieved by the dismissal of the said writ petition ordered without the Hon'ble High Court having dealt with the rival contentions of the parties but by even directing that the petitioner shall quit from and deliver vacant possession of the premises to the respondents on or before 29.10.2010, this petition is presented, respectfully praying for grant of special leave to appeal therefrom

Eventhough the period of lease mentioned in the registered Agreement of Lease dated 3.2.1997 expired on 2.2.2000, undeniably, the respondents continued to receive from the petitioner, the agreed ground rent of Rs.300/- per month all through not only till the date of the notice of eviction issued on 17.1.2002, but even beyond till June 2009, thereby treating the petitioner as a tenant holding over or tenant at sufferance. Neither has any notice of termination of tenancy been issued to the petitioner under the Transfer of Property Act, 1882, nor have any proceedings been initiated against him under the Karnataka Public Premises (Eviction of unauthorized occupants) Act, 1974, if, according to the respondents, the petitioner was in unauthorized occupation of the leased property. It is in this factual situation and the well-settled position in law that even a trespasser cannot be ejected except by due process of law that the petitioner has filed the original suit mentioned above.

The petitioner states that he had had the benefit of interim orders passed by the courts below, during the pendency of the proceedings before the said courts, notwithstanding that the application for temporary injunction and the Miscellaneous Appeal of the petitioner stood dismissed ultimately.

The Hon'ble High Court of Karnataka which had entertained the writ petition from which this Special Leave Petition has arisen has not, unfortunately considered the contentions raised by the petitioner but has proceeded to direct that the petitioner should quit from and deliver "vacant possession of the premises" on or before 29.10.2010, as already stated. The original suit is still pending adjudication before the Trial Court. The writ petition that the petitioner had filed had arisen from interlocutary orders. Without appreciating the same, and also without examination of the contentions raised by the petitioner, the writ petition has been dismissed with the direction mentioned above. Hence, this Special Leave Petition.

LIST OF DATES

Sl.No.	Date	Particulars
1	21.11.1996	The Planning and Development Committee of the Mysore City Corporation approved the leasing of the site in question at its meeting held on that day, that the said decision was taken by it in view of the fact that the site measuring 8 Ft. x 4 Ft. situate near Devaraja Market, Mysore City, which had been ordered to be leased in favour of the petitioner could not be put into the khas possession of the petitioner.
2	20.12.1996	The Finance Committee of the Corporation also approved the leasing of the site in question in favour of the petitioner for a period of 3 years, on a monthly rent of Rs.300/-.
3	3.2.1997	The Corporation executed in favour of the petitioner a registered lease agreement, pursuant to the afore mentioned resolutions, on a monthly rent of Rs.300/-, receiving from the petitioner Rs.5,400/- as advance of rent for 18 months. A true copy of the said agreement is

		filed herewith as Annexure-P3.
4	16.4.2001	The petitioner to whom the vending license had been issued by the Corporation commenced business in the shop constructed on the lease site, dealing in cool drinks and milk.
5	1.1.2002	The Corporation issued a notice that the petitioner should be evicted from the leased premises on which he has constructed a petty shop at his cost and expenditure.
6	21.1.2002	The petitioner instituted an original suit in O.S. No.89/2002 seeking permanent injunction against his eviction.
7	24.7.2002	The application for temporary injunction was dismissed by the Trial Court.
8	25.2.2006	The Corporation issued receipts, accepting the rents from the petitioner in respect of the leased site.
9	9.4.2008	The Corporation issued receipts, accepting the rents from the petitioner in respect of the leased site.
10	12.12.2009	The Corporation issued receipts, accepting the rents from the petitioner in respect of the leased site.
11	16.3.2009	The Corporation issued receipts, accepting the rents from the petitioner in respect of the leased site.
12	8.6.2009	The Misc., Appeal No.74/2002 filed by the petitioner, against the order of dismissal of the application for temporary injunction was dismissed by the learned 4th Additional Civil Judge, Senior Division, Mysore.
13	29.6.2009	Even in the wake of the said judgment of dismissal, the Corporation accepted rents from the petitioner and issued rent receipts to him.
14	29.7.2010	By the impugned order passed in W.P. No.21537/2009 (GM-CPC), the Hon'ble High Court of

		Karnataka has dismissed the said writ petition filed by the petitioner, in which he had questioned the correctness of the order and judgment respectively of the Trial Court and the lower Appellate Court respectively.
15	____ - 10 -2010	Aggrieved thereby this Special Leave Petition is filed.

Bangalore
Date:

ADVOCATE FOR THE PETITIONER